CLEAR mpw
your insurance matters

Renewing your Property policy
RENEWAL INFORMATION PACK

Courtyard Management Company (Rocklane Farm) Ltd

You will find important information about your policy and how to continue your insurance via CLEAR MPW in this pack. Please get in touch as we are always on hand to help.

Your policy with ERGO UK Specialty Limited on behalf of Great Lakes Insurance UK Limited, via Beech Underwriting Agencies Ltd will start on 19th April 2023 and expire 18th April 2024.

Your Insurance Requirements

Here are the main points of your insurance requirements as we understand them (known as a Statement of Demands and Needs). If you don't think we have understood your requirements correctly, please let us know straightaway.

You told us you want insurance that covers:

The structure of 10, 12-14 The Courtyard, Rock Lane Farm, Liscombe Park, Soulbury, Leighton Buzzard, Bedfordshire, LU7 0GY on as broad a basis as is generally available in the market, including cover for contents, loss of rent, employers' liability and liability to the public at a competitive price

You have advised that Flats 12 & 13 are owner occupied, Flat 10 is let and Flat 14 is unoccupied and terms have been obtained on this basis.

Our proposal has been made on the basis that it meets your Insurance Requirements unless we indicate otherwise below.

We are unable to meet your requirements to cover:

Covid-19/Pandemic cover

Your insurers are unable to meet requirements to cover the financial effect of interruption to your business following an enforced closure arising from either Coronavirus or the COVID-19 pandemic
or any new or related viruses or pandemics.

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Information You Must Disclose

As you will be aware, you have a duty to disclose all '***material circumstances'*** to your broker or insurer before you can be insured. This is known as **Duty of Fair Presentation**. You must do this at the outset and then throughout the period of your cover.

So, what is a **material circumstance?** Broadly speaking, this is anything you know of (or should know of) that would influence the judgement of an insurer in deciding whether to insure the risk – and on what terms. For instance:

Your Overall Insurance History

- ✓ Any claims and loss history
- ✓ Losses or incidents where claims were not made
- ✓ Adverse credit history
- ✓ Refusal by an insurer to offer cover (Insurance declinature)
- ✓ Injuries to members of the public

Business & Employment

- ✓ Theft or fraud by an employee
- ✓ Claims made against a director or trustee, even if in connection with a different organisation
- ✓ Accusations of misleading advice or design

Property, Including Construction, Rental and Storage

- ✓ Property construction, including planned buildings works
- ✓ Unoccupancy details
- ✓ Change in tenants
- ✓ Previous damage at the property, including vandalism or squatting
- ✓ Signs of cracking or subsidence
- ✓ Types of goods stored

Health & Safety

- ✓ Activities in hazardous locations, including airside
- ✓ Injuries to members of the public
- ✓ Health & Safety Executive (HSE) Prosecutions
- ✓ Vehicles carrying hazardous substances
- ✓ Unusual products, activities or processes

This is not an exhaustive list and if you are in any doubt as to what information might be material you should disclose it to us.

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Our proposals for your insurance

We are proposing a policy with **ERGO UK Specialty Limited on behalf of Great Lakes Insurance UK Limited, via Beech Underwriting Agencies Ltd** at a total cost to you of **£1,673.40** which is inclusive of Insurance Premium Tax at 12% and any fees. The policy provides you with wide-ranging cover which meets your insurance requirements. We will charge a policy administration fee in respect of this policy.

The breakdown in the cost of the policy can also be found in the What you will Pay section below and the invoice we send to you will separately identify and specify the amount of the policy administration fee payable by you.

Whilst we appreciate that the premium quoted represents an increase when compared to last year, I would advise that 16% of this relates to the uplift in the Buildings Sum Insured as requested by yourself, and is also due to Flat 14 being currently unoccupied as insurers deem unoccupied buildings / parts to be higher risk.

We will charge a policy administration fee in respect of this policy. In addition, the insurer will pay us commission, which is a percentage of the total premiums you pay.

How We Chose Your Policy

We selected a product from a particular Insurer which we had already identified as being suitable for this type of insurance.

How we will Place Your Insurance

We'll use an intermediary to help us find you the right insurance.

In this instance, we've found an insurance product through another intermediary and will place the business with them for you.

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Checking Your Insurance – Next Steps

Understanding your policy

An Insurance policy is a legal contract between you and your insurer. Read it carefully so you understand what you need to do to fulfil your side of the agreement

The Policy Wording

You will find the policy wording for this cover attached.

Statement of Fact and Schedule

You will find the Schedule and Statement of Fact attached these form part of your policy and if any of the statements made, sums insured, or limits are incorrect then you need to advise us as soon as possible

Significant Warranties, Conditions, Exclusions & Subjectivities

Warranty
A very strict condition in a policy which must be exactly complied with as failure to comply entitles the Insurer to deny liability for a related claim.

Condition Precedent to Liability
If you breach a condition precedent the Insurer may avoid any loss created by the breach, for example an Alarm not being activated and theft occurring.

Exclusion
A provision in the policy that excludes the Insurer's liability in certain circumstances or for specified types of loss.

Subjectivity
Where there is a subjectivity or a condition or the words 'subject to' are detailed in your insurance documentation you are required to comply with that subjectivity. If it is not complied with in the timescale referred to:

- your insurer has the right to amend the terms and conditions of the cover
- your insurer has the right to amend the terms and conditions of the cover and amend the premium
- your insurer has the right to amend the premium
- your insurer has the right to withdraw cover

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Checking your Insurance – Next Steps

Important changes to Your Current Policy

Here is a summary of the main changes to your current policy that your insurer will make when you renew it: -

- The Subsidence Excess will be £2,500 from renewal

Checking your Insurance – Next Steps

Terms and Conditions applicable

The Insurer's Schedule and Wording includes Significant Policy Terms, Conditions, Exclusions and Warranties. You may be tempted to skim through these because they're not easy to read or understand but please read them carefully as your Insurer can put extra clauses into the policy to change its scope or leave cover out altogether. Please also ensure your tenants are aware of the policy terms and conditions.

We would like to draw your attention to the following main clauses that apply to your policy. **If you don't understand a condition, or can't see how it will work for you, contact us** so we can explain it to you.

- ***Unoccupied Properties:*** additional conditions and cover restrictions will apply in the event that the property or any portion thereof becomes unoccupied for a period exceeding 21 consecutive days – we must be notified should this occur. Please see page 20 of the policy wording for further details.
- ***Increased Construction Excess:*** see page 2 of the schedule.
- ***Flat Roof Condition:*** see page 2 of the schedule.
- ***Index – Linking Clause:*** see page 2 of the schedule.
- ***Your Bank or Building Societies Interest Clause:*** see page 2 of the schedule.
- ***Beech – Sanctions Clause:*** see page 2 of the schedule.
- ***Day One Uplift 15%:*** see page 3 of the schedule.
- ***Subsidence Ground Heave and Landslip Extension:*** see page 3 of the schedule.
- ***Accidental Damage Extension:*** see page 4 of the schedule.
- ***Minimum Security Clause:*** this sets out the minimum standards of security which must be in force and operational at the premises. See page 4 of the schedule for details.
- ***Reinstatement Conditions:*** see page 21 of the policy wording.
- ***Alternative Basis of Settlement Condition:*** see page 21 of the policy wording.
- ***Average Clause:*** see page 22 of the policy wording.
- ***Property Damage Section Conditions:*** these can be found on page 25 of the policy wording and include the following:
  Mortgages and Other Interests
  Subrogation Waiver
  Value Added Tax

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- ***Employers Liability Section Claims Condition:*** see page 29 of the policy wording.
- ***General Conditions:*** these can be found on page 38 of the policy wording and include the following:
  Arbitration
  Adjustment of Premium
  Non – Invalidation

Assessing Your Declared Values / Sums insured

Make sure your policy's sums insured (that's the maximum amount your insurer will pay out for a claim) is enough to cover any loss or damage. If your policy makes reference to a 'Declared Value' this is the figure that you will need to check to ensure it remains adequate at the beginning of each period of insurance.

Most commercial policies contain an "Average Clause". An insurer can use this clause if you have not set your declared value or sums insured at the amount required to cover a total loss. For instance, if you have only insured for 50% of the total value at risk, you'll only receive 50% of the value of any claim.

Example:

Total value at risk £1,000,000

Declared Value / Sum Insured £500,000

Amount claimed £25,000

Amount insurer will pay £12,500

If you're not sure your sums insured are enough, you can hire a professional valuer to help you work out what they should be.

Remember when you're setting your sum insured for Loss of Rent you'll need to take into consideration the income you receive from renting the property and how long it would take you to reinstate the property and start receiving rental income again in the event of a total loss. This usually takes the form of a 12/24/36 month term.

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What You Will Pay

Period of Insurance	19/04/2023 – 18/04/2024			
Class of Insurance	**Insurer**	**Cost £**	**Insurance Premium Tax (IPT) 12% £**	**Total Cost £**
Property	Great Lakes	£1,449.46	£173.94	£1,623.40
Beech Fee				£25.00
Policy Administration Fee				£25.00
			Total Due	**£1,673.40**

Your Payment Options

You can pay by: -

Debit/credit card: Please be advised that a 1.5% charge applies to Commercial Credit Cards, we are not able to accept payments by Amex.

Bank Transfer: you can pay by BACS using the following bank details – Nat West, sort code: 60 15 03 Account: 61352403

Cheque: make cheques payable to Clear Insurance Management and send to CLEAR MPW, 7/8 Tolherst Court, Turkey Mill, Ashford Road, Maidstone, Kent ME14 5SF

Finance Facility: If you would like to pay the premium via instalments this can be arranged via a premium finance facility with Close Premium Finance/Premium Credit or direct with your Insurers. It is **important** that you contact us as soon as possible if you would like to arrange payment in this way and we will let you know the option(s) available

Please note that when arranging finance, we are acting as a Credit Broker and do not act as the Lender.

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When you need to make a Claim

We will help you when you need make a claim. You can contact us using the details below or visit www.mpwbrokers.com where you'll find information about our claims service and Insurer helplines.

CLEAR MPW
7/8 Tolherst Court
Turkey Mill
Ashford Road
Maidstone, Kent
ME14 5SF

Tel: 01622 683913

Email: claims@mpwbrokers.com

You'll also find the Insurer's claims contact details and instructions in your policy document.

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